



www.aba-therapy.com ■ (216) 503-1234 ■ abaoutreach@aba-therapy.com
6537 Brecksville Rd., Independence, OH 44131

Services Agreement

This agreement is made August 16th, 2023 between ABA Outreach Services and Brecksville Broadview Heights City School District;

WHEREAS, the District desires to contract with ABA Outreach Services to provide certain Applied Behavior Analysis (ABA) Services;

WHEREAS, ABA Outreach Services desires to provide such services to the District;

THEREFORE, the District and ABA Outreach Services hereby agree as follows:

1. **Relationship of the Parties:** The relationship of the parties shall be that of independent contractors. Nothing contained in this Agreement shall constitute or be construed to be or to create a partnership, joint venture, employment, or other such relationship between the parties;
2. **Coverage:** ABA Outreach Services will be available to render Behavioral Services (ABA Therapy) pursuant to this Agreement with the District. ABA Outreach Services will provide services upon request of the District per availability;
3. **Duties:** ABA Outreach Services agrees to provide Behavioral Services (ABA Therapy) which may include program development, direct instruction using Applied Behavior Analysis, training personnel, consultation, evaluations, documentation, observations, monitoring of programs, creation of behavior related materials, collaboration with other service providers, as well as attendance at meetings as requested by the district.
4. **Compliance:** ABA Outreach Services will provide Behavioral Services (ABA Therapy) to the District in accordance with the applicable federal and state laws. All therapists provided to the District by ABA Outreach Services who hold required licensure or certification by the State of Ohio and acknowledge that they or their principles are not suspended or debarred. ABA Outreach Services will comply with the requirements of 45 CFR 164.504 (e)(1) for safeguarding and limiting access to information concerning beneficiaries and per the District request will allow representatives of the U.S. Department of Human Services, ODM, ODE, or their respective designee access to books, documents and records pertaining to the District's contracted services;
5. **Term:** The term of this Agreement is for the 2023-2024 Academic School Year;

6. **Compensation:** ABA Outreach Services will be compensated by the District at the following rate:
- \$60 per hour for the work of a Registered Behavior Technician/Behavior Therapist on an as needed basis;
 - Cancellations will be billed for the total service time scheduled;
 - ABA Outreach Services will provide the District with an invoice of no less than 30% of the total contracted amount of hours if unused throughout the stated timeframe of the contract;
 - ABA Outreach Services will provide the District with a tabulation of the hours, dates, and locations for services provided under this Agreement at the end of each month via email. The District will pay ABA Outreach Services on or before the 30th day of every month for prior month's services and submit payment to ABA Outreach Services at the following address: 6537 Brecksville Road, Independence, Ohio 44131;
 - A 3.1% fee will be charged for all credit card payments;
 - The hourly rate is all inclusive, and services may include, but not be limited to program development, direct instruction using Applied Behavior Analysis, training personnel, consultation, evaluations, documentation, observations, monitoring of programs, creation of behavior related materials, collaboration with other service providers, travel between buildings/locations, remote learning services, as well as attendance at meetings as requested by the district.
7. **Hiring:** In the event the District hires one of ABA Outreach Services' current or former employees within one (1) year of the last date of service rendered by ABA Outreach Services to the District under this Agreement, the District shall pay ABA Outreach Services the sum of \$20,000.00 for compensation for each of the hires.
8. **Insurance:** ABA Outreach Services shall carry professional liability and Ohio Worker's Compensation coverage. ABA Outreach Services will promptly provide proof of such insurance to the District and a copy of the applicable certificate(s) of insurance upon a reasonable request;
9. **Special Emergency Instructions:** The District has in place special instructions for employees, students, and other guests of the District locations, such as fire, tornado, earthquake, and lock-down procedures. ABA Outreach Services may upon reasonable request obtain copies of the District's school policies and procedures regarding emergency instruction and procedures;
10. **Binding Agreement:** The terms, covenants, conditions, provisions, and agreements contained in this Agreement should be binding upon, and insure to the benefit of the parties;
11. **Amendment:** This contract contains the Agreement of the parties and shall be modified only by written amendment signed by both parties;
12. **Assignment:** Neither party to this Agreement may assign their rights or their duties to this Agreement; and

13. **Applicable Law:** This Agreement shall be construed under and in accordance with the laws of the State of Ohio and any dispute arising under this Agreement shall be maintained in a court of competent jurisdiction in Cuyahoga County, Ohio.



Director of ABA Outreach Services

8/16/2023

Date

Brecksville Broadview Heights City School District

Date